

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GUYANA

Complete Community Opposition How-To

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INTRODUCTION & FRAMEWORK

Why This Matters

Guyana has, in the space of a few years, been transformed. A small country of forests, rivers, coast, and Indigenous interior has become the fastest-growing oil economy on earth, its waters opened to an oil supermajor and its future reshaped almost overnight. And so a community here may find that the threat to a place it depends on comes from something vast: an offshore oil development and the risk of a spill along the coast; an onshore gas pipeline and power plant; a gold or bauxite mine in the interior; logging or agriculture on Indigenous land; a road or a port. The first sign is often a permit granted, a project announced, survey crews arriving, or the quiet news that a development has been approved by an agency few can hold to account.

This guide is a practical manual for those communities. It explains how the approval system for large projects works in Guyana, where the genuine openings are, what documentation matters, how to organise, and how to use the levers that Guyanese citizens and lawyers have used to real effect. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

Guyana holds two truths at once, and you must carry both. The first is genuinely inspiring, and it is unusual. **In Guyana, ordinary citizens and courageous lawyers have taken an oil supermajor and its regulator to court — and won.** When the Environmental Protection Agency failed to enforce a condition of ExxonMobil's oil permit that required an unlimited guarantee against the cost of a spill, two citizens, Frederick Collins and Godfrey Whyte, took the agency to the High Court. In 2023 a judge ruled in their favour, found the company in breach, and delivered a scorching judgment: the regulator, he said, had "abdicated its responsibilities," was "submissive," and had left "Guyana and its people in grave potential danger of calamitous disaster." That two private citizens could force such a reckoning on the most powerful company operating in their country is a remarkable fact, and it shows what the courts and the constitution can do here.

The second truth is sobering. **The win was contested and, on appeal, reversed.** In 2026 the Court of Appeal overturned the ruling, holding that the law did not require an "unlimited" guarantee, and set the orders aside — with a final appeal to the Caribbean Court of Justice still possible. And around this single case sits a harder reality: the entire national economy now depends on the oil, which creates enormous political pressure against anyone who resists; the institutions meant to regulate the industry are young, under-resourced, and — as the judge found — too close to the companies they oversee. Guyana shows both what citizen litigation can win and how hard those wins are to hold in a country remade by oil.

Underneath both truths is the ground this guide stands on: **Guyana is a democracy with functioning courts, a free and vigorous press, a written constitution that protects the environment, and a small but determined civil society.** Protest and litigation are lawful. That combination — imperfect, contested, but real — is what this guide will help you use.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A project needs its environmental permit from the EPA; it needs a sound environmental-impact assessment; it needs to comply with the conditions of its permit; it needs to survive the courts and the constitution's environmental protections; it needs the acquiescence of communities and, in the interior, of Indigenous peoples; and it needs to avoid the scrutiny of a free press and an international spotlight. Each is a potential point of leverage.

Your task is to find the link you can reach. Sometimes it is the environmental permit and its conditions — the very thing the Whyte and Collins case turned on. Sometimes it is a defective EIA. Sometimes it is the constitutional right to a healthy environment. Sometimes it is the courts, from the High Court to the Caribbean Court of Justice. Sometimes it is Indigenous land rights under the Amerindian Act. And often it is the free press and the international attention that an oil supermajor cannot escape.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying.

Where a project's permit has a real defect or breached condition, and citizens and lawyers can take it to court, Guyana's tools have proven they can win — at least a hearing, a reckoning, and sometimes a ruling — the Whyte and Collins case is the proof.

Where the state, the regulator, and the oil economy align against you, the wins are hard to hold — the appeal reversal is the warning. There the courts, the constitution, the press, and international attention still matter, but you must weigh the odds honestly and think in terms of accountability, delay, and exposure as much as an outright stop.

Much of this guide is designed to help you judge accurately.

How to use this guide

Read the whole thing once before acting, and read the legal and tilted-system sections with care, because in Guyana the courts, the permit conditions, and the constitution are the sharpest levers, and the pressure of the oil economy shapes everything. Two principles run throughout. First, **use the courts and the constitution:** Guyana's most striking victories have come from citizens and lawyers enforcing permit conditions and constitutional rights before the courts. Second, **combine the strands:** documentation, the permit challenge, the constitution, Indigenous rights, the press, and international attention work far better together than any one alone.

HOW THE SYSTEM WORKS

You cannot pressure a chain you cannot see. This section maps the bodies that decide, the journey a project takes, the rules that matter, the incentives that drive decisions, and the overseers who can hold the system to account.

The Bodies That Decide

The Environmental Protection Agency (EPA). The EPA, under the Environmental Protection Act, runs the environmental-assessment procedure and issues the **environmental permit** — the central approval a large project needs. It sets the permit's conditions and is meant to enforce them. This is your first and most important formal arena, and it is a fraught one: a High Court judge found the EPA had "abdicated its responsibilities" toward the oil industry, so you must engage it while understanding that it may be too close to the projects it regulates.

The courts. Guyana's courts are the arena where citizens have made their greatest impact. The **High Court** hears challenges to permits and constitutional claims; the **Court of Appeal** hears appeals; and the **Caribbean Court of Justice (CCJ)** is Guyana's final court. These courts are independent and have both ruled for citizens (the 2023 unlimited-guarantee ruling) and against them (the 2026 reversal). They are the heart of the legal fight.

The sector regulators and ministries. Petroleum operations engage the petroleum authorities and the responsible ministry; mining engages the Guyana Geology and Mines Commission (GGMC); forestry the Guyana Forestry Commission. Each issues its own approvals, and each is a separate point of challenge.

Indigenous governance. In the interior, Indigenous (Amerindian) villages are governed under the **Amerindian Act** by their Village Councils and Toshaos (leaders), coordinated through the National Toshaos Council, with rights over titled land and a say — contested in practice — over projects affecting them.

Parliament and the political arena. The National Assembly makes the law and holds the government to account, and the oil boom is the central political question of the era, which cuts both ways: it makes resistance politically costly, but it also keeps oil governance under constant public debate.

The press and civil society. Guyana has a vigorous, adversarial free press and a small, determined civil society — transparency groups, Indigenous organisations, and a handful of formidable public-interest lawyers — that have driven the accountability fights.

How a Decision Is Actually Made — The Journey of a Project

Stage 1 — Agreements and planning. A major project often begins with an agreement — a petroleum production-sharing agreement, a concession, a memorandum — negotiated by the government, sometimes on terms later criticised as too generous. These early commitments shape everything that follows.

Stage 2 — Environmental assessment and permit. Significant projects require an EIA and, in principle, public participation, after which the EPA issues the environmental permit with its conditions. This is the decisive formal stage — and the stage whose conditions and defects you challenge, as the Whyte and Collins case challenged Condition 14.

Stage 3 — Construction and operation. Sector permits and construction follow, then the works and the operation — drilling, flaring, pipeline-laying, mining. Each carries conditions, and a breached condition is both an enforcement matter and a basis to go to court.

Stage 4 — Harm and risk. Oil-spill risk to the coast and its fisheries, flaring and emissions, water and forest impacts in the interior, effects on Indigenous lands and livelihoods — the toll, and the risk, that documentation must capture.

The Rulebook — The Provisions That Matter

- **The Environmental Protection Act**, which establishes the EPA, the permit, the EIA, and the enforcement powers — including the duty to enforce a permit's conditions that the courts examined.
- **The permit conditions themselves**, such as the financial-assurance condition at the centre of the oil-spill case — a breached condition is a powerful, concrete ground.
- **The Constitution**, which protects the environment and, in its bill of rights, the right to an environment that is not harmful to health and well-being — the basis for constitutional environmental litigation.
- **The Amerindian Act**, governing Indigenous land and consent in the interior.
- **The sector laws** — petroleum, mining, forestry — and their permit regimes.

The pattern to hold: Guyana's law contains real, enforceable protections — permit conditions and constitutional rights — and citizens have used them to win at first instance. **The gap is in enforcement and in the higher courts' narrower readings** — which is exactly where documentation, litigation, and public pressure make the difference.

Follow the Money — Why Projects Proceed

The incentive is overwhelming and it is the defining fact of the era: oil has made Guyana the fastest-growing economy on earth, and the government, understandably, wants the revenue, the development, and the transformation it promises. Companies want returns; the state wants the money; and the whole national project now leans toward production. The environmental and social cost — the spill risk, the emissions, the pressure on the interior and its peoples — falls on communities and on a fragile natural inheritance. That is why the courts, the constitution, the press, and international attention matter so much: they are the counterweights to an incentive almost everything else pushes the same way.

The Overseers — Who Can Hold the System to Account

- **The courts**, from the High Court to the Caribbean Court of Justice, which have ruled for citizens.
- **The Constitution's environmental protections**, enforceable through litigation.
- **A vigorous free press**, which has scrutinised the oil deal relentlessly.
- **A small, determined civil society** — transparency groups, public-interest lawyers, and Indigenous organisations.

- **International attention**, which follows an oil supermajor everywhere.

These are the overseers your strategy must reach.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Guyanese and comparable campaigns tend to go, not a controlled study. The decisive variables are whether a permit has a real defect or breached condition, and whether the state and the oil economy are ranged against you. For an ordinary project with a challengeable permit, Guyana's courts and constitution are a genuine lever; against the oil industry, on which the whole economy now depends, discount the figures, expect the wins to be contested and reversed, and think in terms of accountability, delay, and exposure as much as an outright stop.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the EIA	10-30%	during review	low	On record; conditions or a redo
Permit-condition / permit challenge (courts)	25-45%	12-48 months	moderate	Breach found; enforcement ordered; delay
Constitutional environmental claim	15-35%	12-48 months	moderate	Right vindicated; project constrained
Demand for EPA enforcement	15-35%	6-24 months	low	Enforcement notice; conditions applied
Indigenous land-rights challenge (interior)	20-45%	12-48 months	low-moderate	Consent enforced; project blocked or moved
International attention / investor pressure	20-45%	6-36 months	low	Reputational and financier pressure
Mass public mobilisation	15-35%	6-36 months	low	Political cost; a project reconsidered
All steps combined (challengeable project)	40-55%	12-48 months	low-moderate	Accountability, delay, or a project altered
All steps combined (core oil economy)	15-35%	12-48 months	low-moderate	Delayed, exposed, conditioned; rarely stopped

Key insight: all steps together beat any single one, and Guyana's real strengths are unusual for a young petro-state — **independent courts** that have ruled for citizens, a **constitution that protects the environment**, a **vigorous free press**, **formidable public-interest lawyers**, **Indigenous rights under the Amerindian Act**, and the **international spotlight** on an oil supermajor. Its constraints are a **regulator a judge called "submissive," higher courts that read the law narrowly** (the appeal reversal), and an **economy so dependent on the oil** that resistance carries heavy political cost.

A note on cost: participating and documenting are inexpensive, and Guyana's public-interest lawyers have carried landmark cases. The expenditure that changes outcomes is committed legal representation — the country's environmental lawyers have shown what a determined case can do.

Effectiveness Visualization

SUCCESS PROBABILITY (accountability, delay, or a project altered/stopped)

CHALLENGEABLE PROJECT -- real permit defect, lawyers engaged, courts reachable:

All steps combined:	40-55%
Permit / court challenge:	25-45%
Indigenous rights (interior):	20-45%
International pressure:	20-45%
Single step:	5-35%

CORE OIL ECONOMY -- state + regulator + economy aligned, wins contested:

All steps combined:	15-35%
Courts + press + intl.:	the strongest combination
Accountability / delay:	more achievable than an outright stop
Single step:	5-30%

How to read this honestly. The lever that most changes outcomes in Guyana is **citizen litigation** — enforcing a permit condition or a constitutional right before the courts — reinforced by the press, international attention, and, in the interior, Indigenous rights. The Whyte and Collins case shows the ceiling: two citizens won a landmark ruling and exposed a captured regulator. The reversal on appeal shows the floor: those wins are hard to hold when the state and the oil economy push the other way. Most Guyanese fights sit between them, and the honest lesson is that the courts and the constitution are real, powerful levers — but against the oil industry, expect a long, contested fight measured as much in accountability and exposure as in outright stops.

Step Importance Ranking (When All Combined)

1. **Citizen litigation** — the permit-condition and constitutional-environmental claims before the courts, from the High Court to the CCJ, that have been Guyana's sharpest weapon.
2. **The environmental permit and its conditions** — the concrete, enforceable terms (like the financial-assurance condition) that a breach makes actionable.
3. **The free press and international attention** — the scrutiny that an oil supermajor cannot escape.
4. **Documentation** — the record that every court and overseer acts on.
5. **Indigenous rights, EPA enforcement demands, and public mobilisation** — the further fronts that constrain, block, or expose a project.

What Guyanese Campaigns Actually Show

A few patterns recur. **Citizens can win** — two private individuals took the oil supermajor and its regulator to court and secured a landmark ruling. **The regulator is weak** — a judge found the EPA "submissive" and derelict, so do not rely on it; make it act, or go around it to the courts. **Permit conditions are concrete weapons** — the case turned on enforcing a specific condition, not a vague principle. **But the wins are contested** — the ruling was reversed on appeal, with the final court still to be reached. **And the oil economy dominates** — resistance to core oil projects carries heavy political cost. The through-line: **document the breach, enforce the permit condition or the constitutional right through the courts, use the free press and the international spotlight, assert Indigenous rights in the interior — and expect a long, contested fight in which accountability and exposure are victories in themselves.**

STEP 1: TARGET IDENTIFICATION

Before you gather a neighbour or write a word, you must know exactly what you are facing, who decides, and where the chain is weakest. Acting before you know these things wastes effort. Spend your first days answering five questions.

The Five Questions

1. **What exactly is the project, and where is it in the process?** An offshore oil development, an onshore pipeline or power plant, a mine, a logging concession, a road or port — and has the EIA been done, is the environmental permit issued or pending, what are its conditions? The permit and its conditions are the spine of the project; knowing exactly where it stands tells you whether you are participating, demanding enforcement, or challenging in court.
2. **What does it threaten, and does it touch the coast, the interior, or Indigenous land?** The coast and its fisheries face the oil-spill risk; the interior faces mining, logging, and the gas-to-shore infrastructure; Indigenous lands raise the Amerindian Act's consent and titling questions. The nature and location of the harm shapes your strongest argument.
3. **Is it part of the core oil economy, or something more ordinary?** Be honest. A challenge to the offshore oil industry, on which the whole economy now depends, faces the full weight of the state and the political pressure; a more

ordinary project — a mine, a concession — may be more contestable. Gauge the force you are up against.

4. What do the permit conditions and the constitution give you? This is often the sharpest question. Are there specific, enforceable conditions — financial assurance, monitoring, flaring limits — that are being breached, as in the Whyte and Collins case? Does the project threaten the constitutional right to a healthy environment? Concrete conditions and constitutional rights are your firmest legal grounds.

5. Who decides, who benefits, and what is the deadline? Which agency issued the permit? Who profits? And what are the court and appeal deadlines? Identify them immediately, because litigation is Guyana's sharpest lever and it runs on deadlines.

Reading the Answers

Work the five questions together and a picture forms. **A project with a breached permit condition or a threat to a constitutional right, that citizens and lawyers can take to court** points toward the strongest Guyanese configuration: litigation to enforce the condition or the right, reinforced by the press and international attention — the Whyte and Collins formula. **A core oil project** points toward the same levers but demands realistic expectations, endurance, and a focus on accountability, delay, and exposure. **A project in the interior** adds the Indigenous-rights and Amerindian Act levers. **In every case**, the courts, the constitution, and the free press are available, and Guyana's citizens have shown what they can do.

Naming Your Realistic Goal

Before going further, decide with a small, trusted group what winning would mean — concretely and honestly. Depending on your situation, a realistic goal might be: a permit condition enforced or a permit quashed by the courts; a constitutional environmental right vindicated; the EPA compelled to act; Indigenous consent enforced in the interior; a project delayed, conditioned, or exposed; or simply a landmark accountability ruling that changes the terms of the debate, as the 2023 case did even before it was reversed. The Whyte and Collins case shows that real wins are possible; the reversal shows they are hard to hold. A goal that fits your situation — often accountability and delay as much as an outright stop — anchored in the permit conditions and the constitution, is the responsible one.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. In Guyana — where the courts, the press, and international observers act on evidence — the campaign is won or lost on whether you can show, in dated, sourced, organised form, exactly what is happening, what condition or right it breaches, and what harm or risk it creates. The Whyte and Collins case was won on a documented breach of a specific permit condition. A community that can prove such a breach, or a defective EIA, or a threat to a constitutional right, holds the instrument that moves the courts. A community with only anger has far less.

The Mindset: Build a Record for a Court

Approach documentation as if you are assembling a file that a High Court judge — and, on appeal, the Court of Appeal and the Caribbean Court of Justice — will read: people who act on concrete, provable facts tied to specific conditions and rights. Everything must be dated, attributed to a source, and stored securely in more than one place, including with trusted allies and, where sensible, abroad. Frame it around the rules from Section 2: the Environmental Protection Act, the permit conditions, the constitutional environmental right, and the Amerindian Act. Evidence tied to a specific, breached permit condition is the most powerful you can gather, because that is exactly what the landmark case turned on.

What to Document

The project and its permit. What is proposed, by whom, and exactly where it stands — the EIA, the environmental permit and every one of its conditions, the sector permits. Obtain the documents; the conditions and the defects in the assessment are often your case.

The permit conditions and any breach. This is the heart of it. Identify the specific, enforceable conditions — financial assurance, insurance, monitoring, flaring limits — and document rigorously whether they are being met. A breached condition is a concrete, actionable ground.

The harm and the risk. The oil-spill risk to the coast and its fisheries — the environmental impact statements

themselves have identified vast areas and values at risk; the flaring and emissions; the water and forest impacts in the interior; the effects on Indigenous lands. Capture with dates, locations, and imagery.

The regulator's conduct. Whether the EPA is enforcing the conditions or, as the court found, failing to. Document the regulator's inaction, because its failure to act is itself a ground for the courts to compel it.

The Indigenous dimension. In the interior, whether the Amerindian Act's consent and titling requirements were met, documented with the affected village's own leadership.

How to Document Safely and Credibly

Record dates and sources for everything; prefer official documents, the environmental impact statements, and verifiable data over rumour; and be accurate and restrained, because a file that overstates can be dismissed, and in a defamation-conscious environment can expose you. Use the environmental impact statements themselves — they often contain the admissions and the risk figures that make your case. Use satellite imagery to document flaring, construction, and land change without confrontation. **On safety: Guyana is a democracy with functioning courts and a free press — organising, documenting, and litigating are lawful, and you can work openly, though the political pressure of the oil economy is real.** Partner early with Guyana's public-interest lawyers, transparency organisations, and — in the interior — Indigenous organisations, who bring the legal framing, the experience, and the standing that carried the landmark cases.

Reading a Guyanese Permit for Its Conditions

When you obtain the environmental permit, read it like a lawyer looking for the one condition that wins the case, because in Guyana that is exactly how the landmark ruling came about — not from a grand principle, but from a specific, numbered permit condition that the company had breached and the regulator had failed to enforce. A few things to look for. **The financial-assurance conditions** are the first and often the most powerful: does the permit require a parent-company guarantee, insurance, or a fund to cover the cost of a spill, a clean-up, or restoration — and has the operator actually lodged it? This is the ground of the Whyte and Collins case, and similar conditions appear across the oil permits. **The monitoring and reporting conditions** are the second: does the permit require the operator to monitor, measure, and report — flaring volumes, discharges, spill preparedness — and is it doing so honestly and on time? **The flaring conditions** are the third: offshore gas flaring has its own limits, fees, and conditions, and a breach is both an environmental harm and an actionable term. **The mitigation and contingency conditions** are the fourth: does the permit require an oil-spill response plan, containment capacity, or specific safeguards, and are they genuinely in place? And **the duration and renewal terms** are the fifth: a permit's renewal is a fresh opportunity to challenge and to demand stronger conditions. Read every condition; identify the one that is concrete, enforceable, and being breached; and you may have found, as two citizens did, the whole case.

WHAT TO GATHER, AND WHERE TO FIND IT

This section turns documentation into a concrete list of sources. Much of Guyana's project record is public or obtainable, and a vigorous press and international scrutiny make more of it reachable. Work through these carefully.

The Official and Legal Record

The environmental permit and its conditions. The EPA holds the environmental permit and its conditions; obtain the full permit, because — as the Whyte and Collins case showed — a specific condition can be the whole case. The environmental impact statements are frequently public and contain the risk figures and admissions that make your argument.

The EIA and the consultation record. Request the environmental-impact assessment and any public-consultation record; defects and gaps are grounds.

The agreements and sector permits. The petroleum production-sharing agreement (public and much-scrutinised), the mining permits from the GGMC, the forestry concessions from the Forestry Commission.

Court records. Guyana's landmark environmental cases — the oil-spill guarantee litigation and the constitutional challenges — are on the public record and are a template and a resource; study them.

The Harm and Risk Sources

The environmental impact statements. For the oil projects, these identify the spill scenarios, the areas and values at risk, and the mitigation promised — often your strongest evidence, straight from the developer.

Satellite and monitoring data. Flaring is detectable from space; Global Forest Watch and satellite imagery document interior deforestation, mining, and construction, safely and verifiably.

Fisheries and community data. The coast's fisheries and the communities dependent on them, for the oil-spill case.

The Company, Regulator, and Indigenous Record

Company records. ExxonMobil and its subsidiaries, the co-venturers, and the contractors — traceable through corporate registries and cross-border tools (OpenCorporates).

The regulator's record. The EPA's enforcement (or non-enforcement) history, and the court's findings on its conduct.

Indigenous land and consent records. Titling, the Amerindian Act processes, and the affected village's own decisions, in the interior.

The Organisations and Channels That Carry the Case

- **Public-interest lawyers** — Guyana's environmental advocates who have carried the landmark cases.
- **Transparency and accountability organisations**, and the country's oil-governance watchdogs.
- **Indigenous organisations** — the Amerindian Peoples Association and village leadership.
- **A vigorous free press** — Kaieteur News, Stabroek News, and others that scrutinise the oil sector daily.
- **International observers** — the global press, financiers, and environmental groups that follow an oil supermajor.

Turning Sources into a Case

As you gather, sort everything against the chain from Section 2 — the agreement, the EIA, the permit and its conditions, the operation, the harm and risk — so each piece attaches to the point it proves, and identify the specific conditions and constitutional rights engaged. By the end you should be able to show, with dated and sourced evidence, what is happening, what condition or right it breaches, and at what risk — the record that moves the courts, the press, and the international spotlight, and that, in Guyana, two citizens once used to force a reckoning on a supermajor.

Researchers for Hire, and Everyday Research Tools

If digging through permits, corporate filings and impact statements is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples — and, given ExxonMobil's US listing, SEC EDGAR is genuinely useful here for the parent company's filings.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

The Oil-Spill Risk — Guyana's Defining Danger, and Its Best Evidence

If your fight touches the offshore oil industry, the oil-spill risk is both the central danger and, remarkably, your best source of evidence — because much of the case is already written in the developer's own documents. Guyana's coast, its fisheries, and the wider Caribbean are exposed to a catastrophic spill from the Stabroek Block operations, and the risk is not speculative: the **environmental impact statements produced for the projects themselves** model spill scenarios and identify the areas and values at risk. Independent analysts have drawn on those very statements to show that a spill could reach far beyond Guyana's own waters — that a dozen or more Caribbean islands, with an enormous combined economic value, could be affected. This is powerful, and you should use it deliberately. **Mine the environmental impact statements** for the spill scenarios, the trajectories, the response times, and the admissions of risk — evidence from the

developer carries a credibility your own claims cannot match. **Document the human and economic stake** — the coastal communities, the fisheries, the tourism, the wider region — so the abstract risk becomes a concrete danger to real livelihoods. **Connect the risk to the permit condition** — the whole point of the financial-assurance condition at the heart of the Whyte and Collins case is that if a spill occurs and the company has not lodged the guarantee, Guyana itself bears the ruinous cost. And **use the regional and international dimension** — a spill that crosses borders makes the fight a Caribbean and a global one, reaching the regional press, neighbouring governments, and the international observers who watch a supermajor. The oil-spill risk is the danger that gives a coastal Guyanese campaign its urgency and its moral force — and because the developer's own documents describe it, it is a danger you can prove.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organisation gives it weight. Guyana is a small country where a determined few — citizens, lawyers, journalists — have had an outsized impact, and where the challenge is less about mass numbers than about persistence, credibility, and the courts. This section is about building that kind of resistance: focused, credible, legally anchored, and connected to the press and the wider world.

Start With a Small, Trusted Core

Begin with a handful of committed people who share the load and can act without drama. Agree early on what you are trying to achieve, who does what, and — given that litigation is your sharpest lever — who is responsible for finding and instructing lawyers. Guyana's landmark cases were brought by a small number of determined citizens; a small, credible, persistent core is how it starts here.

Widen Into a Credible Coalition

Guyana's impact has come from coalitions that are credible and connected rather than merely large. Aim for that shape. **Affected residents, fishers, and — in the interior — Indigenous villagers** are the moral core. **Public-interest lawyers** are decisive; the country's environmental advocates have carried the fights that mattered. **Transparency and oil-governance organisations** bring expertise and standing. **Journalists** — Guyana's press is adversarial and influential — carry the fight to the public. **Indigenous organisations and village leadership**, in the interior, bring rights and legitimacy. **International allies** — the global press, environmental groups, and financiers watching an oil supermajor — extend your reach far beyond a small country. Credibility and connection, more than sheer numbers, are what have moved things in Guyana.

The Distinctive Guyanese Lever — Citizens and Lawyers in Court

Guyana's most powerful lever is the determined citizen backed by a formidable lawyer, using the courts and the constitution. Two private individuals, well represented, took the oil supermajor and its regulator to the High Court and won a landmark ruling. This is the model: identify the concrete breach or the constitutional right, find the lawyer who can carry it, and use the courts — reinforced by the press and international attention. Mass protest has its place, but in Guyana the courtroom, backed by the free press, has been where the decisive blows landed.

Choose Tactics That Fit — and Sustain the Effort

Guyana's repertoire is real and lawful: public participation, demands for EPA enforcement, litigation, constitutional claims, press engagement, international outreach, and — in the interior — the assertion of Indigenous rights, used together. Keep it lawful, credible, and accurate; in a small country with a defamation-conscious culture and an economy leaning toward oil, your credibility is your armour. Guard against burnout and the discouragement of contested, reversed wins by sharing the load, keeping the legal case moving, and remembering that a landmark ruling changes the debate even when it is later overturned. In Guyana, a small, credible, persistent coalition anchored in the courts and amplified by the press and the world is what has made the difference — build it to last.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People

outside that niche can carry a piece too — a **PR or crisis-communications firm**, a **campaign consultant**, a **digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — in a small country where credibility is everything and the oil economy is watching, keep the effort visibly genuine and locally rooted, and put your scarce resources first into the lawyer who can carry the case, because in Guyana the courtroom is where the decisive blows land.

The Interior and Indigenous Rights

If your fight is in Guyana's vast forested interior rather than on the coast, the terrain — legal and physical — is different, and Indigenous rights are central. The interior is home to Guyana's Indigenous (Amerindian) peoples, whose villages hold titled land and are governed under the **Amerindian Act** by their own Village Councils and Tshaos, coordinated through the National Tshaos Council. The threats here are gold and other mining, logging, roads, and the onshore infrastructure that the oil economy is spawning — and these press directly on Indigenous land, water, and forest. Where a project affects titled Amerindian land or requires the community's consent, the Amerindian Act's provisions on consent and on the village's authority over its land are real, if imperfectly enforced, levers. Three principles should guide a campaign here. First, **the affected Indigenous community must lead** — its Village Council and Tshao speak for it, and outsiders must support rather than supplant that leadership; a campaign that speaks over Indigenous people betrays both them and itself. Second, **document whether consent and consultation were genuinely obtained** — a failure to follow the Amerindian Act's processes is a concrete ground, and the community's own recorded decisions are the key evidence. Third, **connect the interior fight to the wider levers** — the courts, the constitution, the press, and international attention reach the interior too, and an Indigenous-rights case carries particular moral weight domestically and abroad. The interior's remoteness can make documentation and organising harder, but the rights are real; follow the community's lead, hold the developer to the Amerindian Act, and bring the country's other levers to bear alongside it.

STEP 4: LEGAL CHALLENGES

Legal action is Guyana's sharpest lever — the arena where citizens have made their greatest impact — and this section explains the openings. It is not a substitute for a lawyer, and finding one experienced in environmental and constitutional law is the single most important step here, because Guyana's landmark victories have been lawyer-led. The good news is that the country has public-interest advocates who have shown exactly what a determined case can do.

The Core Openings

Enforcing a permit condition. The route that produced the landmark ruling: where the environmental permit contains a specific, enforceable condition — financial assurance, insurance, monitoring, flaring limits — and the operator breaches it while the EPA fails to enforce, citizens can go to the High Court to have the breach declared and the regulator compelled to act. This is the most concrete and powerful ground, because it turns on a specific term, not a vague principle. It is exactly what Whyte and Collins did.

The constitutional environmental claim. Guyana's Constitution protects the environment and the right to an environment that is not harmful to health and well-being. A project that threatens that right — including, in principle, the interests of future generations — can be challenged as unconstitutional. These claims are harder and their outcomes less certain, but they raise the stakes and the profile of a fight.

Challenging the permit or the EIA. Where the environmental permit was issued on a defective EIA, without proper consultation, or otherwise unlawfully, it can be challenged directly.

Compelling the regulator. Where the EPA fails its statutory duty — as a judge found it had — the courts can order it, by mandamus, to perform that duty and enforce the conditions.

The Indigenous Route

Amerindian Act rights. In the interior, where a project affects titled Indigenous land or requires consent under the Amerindian Act, a failure to obtain that consent or to respect those rights is a real ground, carried by the affected village and its leadership.

The Appeals and the Final Court

Guyana's legal fights run up a ladder: the **High Court**, the **Court of Appeal**, and the **Caribbean Court of Justice (CCJ)** as the final court. This matters for expectations. The oil-spill case was won at the High Court and reversed at the Court of Appeal, with the CCJ potentially still to come. So plan for the long haul: a first-instance win is real and valuable — it creates a record, exposes the failures, and shifts the debate — but it may be appealed, and the higher courts may read the law more narrowly. Budget, emotionally and practically, for the ladder.

Standing, Deadlines, and Realistic Expectations

Three points. First, **standing**: Guyanese citizens have brought these cases directly, and public-interest standing has been real, so ordinary people, well represented, can litigate. Second, **deadlines matter** — appeals and applications run on firm timetables, so track them from the start. Third, **be realistic**: the courts are independent and have ruled for citizens, but the state, the regulator, and the oil economy push the other way, and wins can be reversed. A strong case, well-lawyered, is a genuine chance — but think in terms of accountability, a compelled regulator, delay, and a shifted debate as much as an outright, permanent stop.

What Legal Action Realistically Achieves

Be clear-eyed. Litigation can have a breach declared, compel the regulator to enforce, vindicate a constitutional right, quash a defective permit, and — in the interior — enforce Indigenous consent. Even a reversed first-instance win can permanently change the terms of the debate and put the industry and the regulator on notice, as the 2023 ruling did. Combined with documentation, a credible coalition, the free press, and international attention, legal action is the substantive path in Guyana. Find the lawyer, build the concrete case on a permit condition or a constitutional right, use the ladder of courts, and remember that this is the country where two citizens took a supermajor to court and, for a time, won.

The Whyte and Collins Precedent — Citizens Against a Supermajor

The single most important case for a Guyanese community to know is Whyte and Collins v the EPA and Esso, because it is both the template and the honest lesson. Two private citizens, Frederick Collins and Godfrey Whyte, noticed that ExxonMobil's Guyana subsidiary had not complied with Condition 14 of its Liza Phase One environmental permit — the condition requiring financial assurance, including an unlimited parent-company guarantee and insurance, to cover the cost of an oil spill in the Stabroek Block. The Environmental Protection Agency, whose job it was to enforce that condition, had not made the company comply. So the citizens took the EPA to the High Court. In May 2023, Justice Sandil Kissoon ruled in their favour: he declared the company in breach, found that the liability was unlimited and uncapped, and ordered the EPA to issue an enforcement notice compelling the company to provide the guarantee and insurance. His judgment of the regulator was withering — the EPA had "abdicated its responsibilities," was "submissive," and had left the nation "in grave potential danger of calamitous disaster." That is the template: a specific, enforceable permit condition; a documented breach; a failing regulator; and citizens, well represented, taking it to court. But it is also the honest lesson, because the story did not end there. The government and the EPA appealed; a stay was granted, conditioned on the company lodging a US\$2 billion guarantee; and in 2026 the Court of Appeal overturned Kissoon's ruling, holding that neither the permit nor the law provided for an "unlimited" guarantee — with a final appeal to the Caribbean Court of Justice still possible. Study this case closely. It shows exactly how to win in Guyana — and exactly how hard a win is to hold.

The Constitutional Environmental Right — and Future Generations

Beyond the permit conditions lies a second, more ambitious legal lever: Guyana's Constitution, which protects the environment. The bill of rights guarantees, in substance, a right to an environment that is not harmful to a person's health and well-being, and the constitution places duties on the state to protect the natural environment for the benefit of present and future generations. This opens the possibility of a constitutional environmental claim — an argument that a project, or the oil development as a whole, threatens the constitutional rights of citizens, including those not yet born. Such claims have been brought in Guyana, arguing that unchecked oil production and its climate consequences breach the rights of present and future Guyanese. Be honest about their difficulty: constitutional environmental claims are harder to win than a concrete permit-breach case, the courts have been cautious, and the outcomes are uncertain. But they have real value. They raise the stakes and the profile of a fight, framing it not as a technical dispute but as a question of fundamental rights and the country's future. They can constrain how a project proceeds even without stopping it. And they build a body of argument and precedent that, over time, shifts what the courts and the country will accept. Use the constitutional right where it fits — as the ambitious frame that gives a fight its moral and generational weight — while resting your most winnable case on the concrete permit condition beneath it.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, a journalist, an Indigenous village, an international observer, and the public in different ways. Learning to translate your evidence for each is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that the operator has not lodged the financial guarantee its permit requires against the cost of an oil spill, and the regulator has not made it. That one fact becomes:

- **A legal argument:** the operator is in breach of a specific permit condition and the EPA is in breach of its statutory duty to enforce it — a matter the High Court can declare and compel, as it did in 2023.
- **A constitutional argument:** leaving the country exposed to an uninsured spill threatens the right to a healthy environment.
- **A risk argument:** if a spill occurs uninsured, Guyana itself — not the company — bears the cost, a danger the environmental impact statements themselves quantify.
- **A public argument:** the most powerful company in the country is not paying to protect the coast, and the regulator meant to make it is failing — a story of fairness and danger that resonates.
- **An international argument:** a supermajor operating without the spill guarantee it would be required to lodge elsewhere — a reputational and financier vulnerability.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank.

Match the Argument to the Audience

The courts want the breach framed against the specific condition or the constitutional provision, with the documents that prove it, and the precise remedy sought.

Journalists want the human and national story made vivid and true — the coast, the fisheries, the danger, the failing regulator, the citizens who stood up — grounded in fact.

Indigenous villages want the argument framed around their land, their rights, and their own decisions, on their terms and led by their leadership.

International observers want the angle that reaches a global company — the reputational risk, the double standard, the financier exposure.

The Master Frame: "The Company Won't Pay to Protect Us, and the Regulator Won't Make It — So the Courts Must"

Across every audience, the strongest frame in Guyana joins the concrete breach to the public danger and the citizens' stand: a specific, enforceable protection is being ignored; the regulator is failing; the constitution and the courts are the remedy; and ordinary Guyanese have already used them to force a reckoning. Framing the fight this way is accurate; it is legally grounded in a concrete condition or right; and it carries the moral force of a small nation standing up to a giant. In Guyana, insisting — with evidence — that a specific protection is being breached, that the regulator has failed, and that the courts must act, is your strongest argument.

STEP 5: MEDIA STRATEGY

Media turns a legal case into a national reckoning and reaches an international spotlight that an oil supermajor cannot escape — and Guyana has a vigorous, adversarial free press that has scrutinised the oil deal relentlessly. Use media deliberately, in service of your goal, alongside the legal work beneath it.

What Coverage Achieves

Coverage raises the political and reputational cost of a project; it pressures a regulator and officials who dislike scrutiny; it reaches allies, lawyers, and international observers; it warns the company and its financiers that a project is contested; it

draws the global eye that follows a supermajor; and it creates a public record. In Guyana, where the press has kept the oil deal under constant examination, sustained coverage of a breach or a danger carries real weight and has driven the accountability fights.

Build the Story Around People, Place, and the Concrete Breach

The most powerful Guyanese stories combine a human and national face with a concrete, documented fact: fishers and a coast against an uninsured spill risk; an Indigenous village against a project on its land; ordinary citizens standing up to the most powerful company in the country. Lead with the people and the place; supply the proof — the specific condition breached, the risk the environmental statements admit; keep it accurate, because credibility is everything in a small, litigious country. Prepare a few clear, repeatable messages — what the project is, what protection is being ignored, what danger it creates, what you are asking — and keep every spokesperson on them.

Reach Every Layer

Guyana's national press — Kaieteur News, Stabroek News, and the others — is adversarial and influential; it is your primary channel and has led the oil-accountability coverage. **Regional Caribbean media** extend the reach, and the CCJ dimension makes the fight regional. **International media** matter enormously here — the global press follows ExxonMobil everywhere, and coverage abroad reaches financiers, investors, and the company's home audience. **Social media and your own channels** mobilise and inform directly — strongest when anchored to verified facts and the legal case.

Discipline and Safety

Be accurate always; one exaggeration handed to the other side can discredit a campaign and, in a defamation-conscious environment, expose you, so verify before you publish and correct fast. Stay on message. Anticipate the counter-narrative — that opponents are against the development and prosperity the oil promises — and pre-empt it by grounding everything in specific breaches, concrete dangers, and the simple fairness of making a giant company pay to protect the country. Guyana's free press is a genuine asset; use it fully and responsibly. Used with discipline, media — and especially the international spotlight on a supermajor — is the amplifier that makes the legal lever hit far harder.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and in Guyana, remember that your greatest amplifier is often free — the international press already follows ExxonMobil everywhere, so a true, well-documented story reaches the world with little more than a good pitch.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection During the EIA / Permit Consultation

To: the Environmental Protection Agency (EPA) **Subject:** Objection — [project], environmental authorisation [ref]

As a person affected by [project] at [location], I object during the [EIA / permit] process. My grounds, with evidence: (1) the environmental-impact assessment [omits / understates] [effect — e.g. the oil-spill risk to the coast]; (2) the proposed conditions are insufficient to protect against [the harm]; (3) [the consultation was inadequate]. I request that the permit be REFUSED, or that [strict, enforceable conditions] be imposed, and that this objection be entered on the record. [Attachments.]

8B. Request for Information

To: [the EPA / the relevant agency] **Subject:** Request for information — [project]

I request copies of: the environmental permit and all of its conditions; the environmental-impact assessment and environmental impact statement; the record of public participation; the monitoring and compliance reports; and the correspondence between [the agency] and [the developer]. As a member of the public affected by this project, I ask that these be provided within a reasonable period.

8C. Demand for EPA Enforcement of a Permit Condition

To: the Environmental Protection Agency **Subject:** Demand for enforcement — breach of Condition [X], [project]

We draw your attention to an apparent breach of Condition [X] of the environmental permit for [project]: [the specific breach — e.g. the required financial guarantee against oil-spill costs has not been lodged]. Under the Environmental Protection Act, the Agency has a duty to enforce this condition. We request that you issue an enforcement notice requiring [the operator] to comply within [period], and that you inform us of the action taken. A failure to enforce may itself be challenged in the High Court.

8D. Instruction to Counsel / Application to the High Court

To: [counsel] **Subject:** Proposed application — [project], breach of permit condition / constitutional right

We wish to instruct you regarding [project]. In summary: [the operator] appears to be in breach of [Condition X of its permit / the constitutional right to a healthy environment], and the EPA has [failed to enforce / failed in its duty]. We believe there are grounds for [a declaration of breach and an order of mandamus compelling the EPA to enforce / a constitutional claim]. We have documented evidence, including [key items], and can meet to discuss standing, the remedy, and the timetable, including any appeal.

8E. Letter to the EPA or the Minister

To: [the EPA / the responsible Minister] **Subject:** [Enforce / suspend / reconsider] [project] [ref]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a breached condition, an oil-spill risk, an Indigenous-rights obligation]. We ask you to [specific, achievable action]. [If true:] [#] residents and [#] organisations share this concern; the matter carries legal risk, including proceedings in the High Court, and reputational risk given the international attention on this project. We welcome a meeting and can share our full evidence.

8F. Coalition Outreach Email (to a public-interest lawyer or organisation)

To: [a public-interest lawyer / a transparency or environmental organisation] **Subject:** [Project] — would you take or support a case?

We are a community group in [place] working on [project], which [one-line stake — e.g. "risks our coast to an uninsured oil spill in breach of a permit condition"]. We are getting in touch because Guyana's public-interest lawyers have shown what a determined case can do — as in the Whyte and Collins litigation. We are not asking you to adopt our whole campaign — just to consider [taking or advising on a case to enforce the condition / a constitutional claim]. We have documented evidence and community support and can share a brief and arrange a call.

8G. Letter From or With an Indigenous Village (Interior)

To: [the EPA / the relevant agency / the developer] **Subject:** [Project] and the rights of [village] under the Amerindian Act

This project affects the titled land and the rights of [village], an Indigenous community governed under the Amerindian Act. [The consent required / the consultation required] [has not been obtained / was inadequate]. As [the Village Council / Toshao / with the authority of the village], we object, and we require that our rights under the Amerindian Act be respected before any further step is taken. [Signed by the village leadership.]

8H. Email to a Reporter

To: [journalist] **Subject:** Story tip: [specific finding] — [project]

I follow your coverage of [beat]. We have something in [place] your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "the operator has not lodged the oil-spill guarantee its permit requires, and the EPA has not made it"], and [a decision / hearing] is due [date]. It's new, specific, and carries international weight given the company involved. I can share the full file and connect you with [an expert / affected residents]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the permit conditions and any court deadlines. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation; and route them, where you can, through or with an experienced public-interest lawyer, because in Guyana the courtroom is where the decisive blows land. The reply — or the silence — becomes part of your record, and in Guyana that record feeds the arena that matters most: the courts.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Get the permit and read its conditions — today.** In Guyana, a specific permit condition can be the whole case. Obtain the environmental permit for the project and read every condition, looking for one that is concrete, enforceable, and being breached — as the oil-spill guarantee condition was.
- 2. Demand that the EPA enforce it.** One clear letter (8C) putting the regulator on notice of a breach and demanding an enforcement notice creates a record — and its failure to act is itself a ground for court.
- 3. Find a public-interest lawyer.** Litigation is Guyana's sharpest lever, and the country's environmental advocates have shown what a determined case can do. Reaching one (8F) is the single highest-impact move you can make.
- 4. Request the file.** One information request (8B) forces out the permit, the assessment, and the compliance record — often revealing the breach that becomes your case. The environmental impact statements themselves often contain the risk figures you need.
- 5. Tell the press.** Guyana's adversarial national press has led the oil-accountability coverage; a single accurate tip (8H), with an international angle, can raise the cost and reach a lawyer.
- 6. In the interior, assert the village's rights.** If the project is on Indigenous land, a letter from or with the village leadership (8G) invokes the Amerindian Act and puts consent squarely in issue.
- 7. Reach an international observer.** A supermajor is watched worldwide; a note to an international journalist, environmental group, or financier extends your reach far beyond a small country.

Do only the first three and you will have found your concrete ground, put the regulator on notice, and reached the lawyer who can carry it — the exact path that produced Guyana's landmark ruling. Then come back and read the rest.

WHEN THE SYSTEM IS TILTED

Guyana's system is tilted, and you must understand it precisely, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs in one overwhelming direction: the oil. The economy now depends on it, the state wants the revenue and the transformation it promises, and almost every incentive leans toward production — which makes resistance to core oil projects politically costly and lonely. The **regulator is weak**: a High Court judge found the EPA had "abdicated its responsibilities," was "submissive," and had left the country in "grave potential danger," so you cannot rely on it to protect you. The **higher courts have read the law narrowly**, reversing the landmark first-instance win. And the **institutions are young and under-resourced**, straining to govern an industry that arrived faster than the capacity to regulate it. Where this tilt bites, the ordinary process gives little — but real levers still reach past it.

What Still Works — And It Is Real

The decisive point about Guyana is that even with this tilt, real levers reach past it — because the courts are independent, the constitution protects the environment, and the press is free.

The courts are independent, and citizens can reach them. The High Court ruled for two private citizens against the supermajor and its regulator. Wins can be appealed and reversed, but the courtroom is genuinely open, and a concrete permit-breach or constitutional case is a real weapon.

The constitution protects the environment. The right to a healthy environment is a written protection that a captured regulator cannot erase.

The free press cannot be silenced. Guyana's adversarial press has kept the oil deal under relentless scrutiny, and it amplifies every accountability fight.

The international spotlight follows the company. An oil supermajor is watched worldwide; reputational and financier pressure reach where domestic politics will not.

Indigenous rights hold in the interior. The Amerindian Act gives interior communities real, if contested, leverage.

The Honest Frame

So the honest frame for Guyana is real but demanding. The courts are independent, the constitution protects the environment, the press is free, and the world is watching — which gives citizens genuine power, as the landmark case proved. But the oil economy dominates, the regulator is weak, the higher courts read the law narrowly, and wins are hard to hold. So diagnose the tilt honestly: rely on the courts and the constitution, not the captured regulator; use the free press and the international spotlight; and think in terms of accountability, delay, exposure, and a shifted debate as much as an outright, permanent stop. In a country remade by oil, that is often what winning looks like — and it is not nothing.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But in Guyana, "capture" is not a hypothetical — a High Court judge found the environmental regulator itself derelict and "submissive" toward the industry it oversees. Recognising the real dynamic tells you which lever works and which is closed. Handle it carefully: allege only what your evidence supports.

Signs of Capture

Watch for the patterns, several of which the courts have already identified: a regulator that fails to enforce clear permit conditions against a powerful company; a permit granted or renewed on terms too favourable to the operator; an agreement negotiated on terms widely criticised as one-sided; a state so dependent on an industry's revenue that it defends the company against its own citizens; and institutions too weak or too aligned to hold a giant to account. In Guyana, the capture the court named was not secret bribery but a regulator that had "abdicated its responsibilities" — a softer, structural capture born of a small, young state facing an overwhelming industry.

Why This Changes Your Strategy

Where the regulator is captured or the state is aligned with the industry, appealing to them is futile. The strategy shifts to the independent levers:

- **The independent courts.** They ruled for citizens against the supermajor and its regulator, and can compel the regulator to do its duty — the primary route past capture.
- **The constitution.** Its environmental protections stand above a captured agency.
- **The free press.** It exposes what a captured regulator conceals and cannot be silenced.
- **International attention.** A supermajor's global exposure reaches past domestic capture to financiers and reputations.
- **Indigenous rights**, in the interior, which the state must still respect.

Document It Carefully and Safely

If you are documenting capture, do so with rigour and restraint. Distinguish always between what you can prove and what

you suspect; allege only what your evidence supports — and note that in Guyana the courts have already made findings about the regulator's failure, so you can often rely on the public record rather than fresh accusation. Refer serious matters through lawyers and the courts, not reckless public claims, which in a defamation-conscious environment can expose you. Keep your documentation secure. In Guyana, the exposure of a captured regulator — carried to the courts, the press, and the international spotlight — is both powerful and, thanks to the landmark case, already partly established: the judge said it plainly, and you can build on that record.

INTEGRATION & TIMELINE

The steps in this guide are not a menu to pick from; they are strands to weave together over time, with the courts and the permit conditions at the centre. This section shows how they combine, and roughly when each comes into play.

How the Strands Reinforce Each Other

The power of a Guyanese campaign comes from combining its strands around the courts. **Documentation** feeds everything — the court case, the enforcement demand, the press, the international outreach. **The permit conditions and the constitution** are the concrete legal grounds the courts act on. **Litigation** is the decisive lever, the one that produced the landmark ruling. **The free press and international attention** raise the cost and reach past domestic capture. **Indigenous rights** open a further front in the interior. Each strand strengthens the others: a documented breach of a permit condition becomes an enforcement demand, a court case, a national news story, and an international reputational risk at once. No single strand reliably wins on its own against the oil economy; woven together around a well-lawyered case, they produced Guyana's greatest accountability victory.

A Rough Timeline

Early (first weeks). Get the permit and read its conditions; identify the concrete breach or the constitutional right at stake. Request the file. Demand EPA enforcement to create the record. And — the highest-impact move — reach a public-interest lawyer.

Building (weeks to months). Prepare and file the case, on the permit condition or the constitutional right. Deepen the documentation, drawing on the environmental impact statements themselves. Build the credible coalition — residents, lawyers, transparency groups, and in the interior the Indigenous village — and engage the national press and international observers.

Sustained (months to years, and up the ladder). Carry the case through the courts, and be ready for the ladder — the High Court, the Court of Appeal, the CCJ — because a first-instance win may be appealed and reversed. Keep the press, the international attention, and the documentation alive throughout. Sustain the people through the long, contested haul by sharing the load and remembering that a landmark ruling shifts the debate even when overturned.

Throughout. Reassess honestly. If a lever works, press it; if the oil economy grinds on despite real effort, keep the aim on accountability, a compelled regulator, delay, and exposure, and keep the record and the press engaged. And keep the courts and the constitution central: in Guyana, independent courts applying the permit conditions and the constitution, backed by a free press and the world's attention, are the firmest ground a community stands on.

The Win and Its Reversal — Planning for the Long Haul

Guyana's landmark case teaches a discipline every campaign here needs: plan for the ladder of courts, and value a win for what it does even if it is later undone. The oil-spill guarantee case was won decisively at the High Court in 2023 — and reversed just as decisively at the Court of Appeal in 2026, with a possible final appeal to the Caribbean Court of Justice still to come. A community that treats the first-instance ruling as the end of the story will be crushed by the reversal; a community that understands the ladder will plan for it and draw strength from each stage. Three lessons follow. First, **a first-instance win is real and valuable even if appealed** — it creates a public record, exposes the failures of the company and the regulator, shifts the national debate, and puts everyone on notice; the 2023 ruling did all of that, and none of it was undone by the reversal. Second, **budget for the ladder, emotionally and practically** — the fight may run for years through three courts, so pace the coalition, the funds, and the people accordingly, and do not stake everything on a single hearing. Third, **the higher courts may read the law more narrowly than justice seems to require** — so build the case on the most concrete ground available, anticipate the narrow reading, and, where the law itself is the obstacle, remember that a reversal on a point of law is also an argument for changing that law. In Guyana, the win and its reversal are the same lesson: fight to win at every stage, but measure success by the record and the reckoning as much as by the final order.

FINAL ASSESSMENT

The Honest Bottom Line

Guyana is, for a community facing a destructive project, a country of one striking strength and one overwhelming pressure. Both are true, and holding both is the beginning of wisdom here.

The strength is genuine and, for a young oil economy, remarkable. **In Guyana, ordinary citizens and courageous lawyers have taken an oil supermajor and its regulator to court and won.** Two private individuals, well represented, forced a High Court to declare ExxonMobil's subsidiary in breach of its permit and to find the Environmental Protection Agency derelict — "submissive," the judge said, and putting "Guyana and its people in grave potential danger of calamitous disaster." The country has independent courts, a written constitution that protects the environment, a vigorous free press, formidable public-interest lawyers, Indigenous rights in the interior, and the international spotlight that follows a supermajor. These are real levers, and citizens have used them to real effect.

But the pressure is overwhelming, and honesty requires naming it. **The economy now depends on the oil**, which makes resistance to core oil projects politically costly and lonely. The **regulator is weak and, the court found, too close to the industry**. The **higher courts have read the law narrowly** — the landmark ruling was reversed on appeal in 2026, with the final court still potentially to come. And the **institutions are young and straining** to govern an industry that arrived faster than the capacity to regulate it. The tools are real, but the wins are hard to hold, and a community must go in clear-eyed.

What Distinguishes the Campaigns That Win

The Guyanese campaigns that succeed share a pattern. They **find the concrete ground** — a specific, breached permit condition, or a constitutional right — rather than a vague grievance. They **find the lawyer**, because litigation is the sharpest lever here. They **use the courts and the constitution**, not the captured regulator. They **harness the free press and the international spotlight** on the company. And they **think in terms of accountability, delay, and exposure**, not only an outright stop, because in an oil economy those are real victories. The campaigns that come to grief rely on the regulator, lack the concrete legal ground, or expect a permanent stop where the realistic win is a reckoning.

A Closing Word

If you are reading this because a project threatens your coast, your fisheries, your interior, or your Indigenous land, understand that in Guyana you are not without recourse — and that you stand in a country where two ordinary citizens took the most powerful company operating in their nation to court and forced a reckoning. The method is clear: get the permit and find the concrete breach or the constitutional right; demand the regulator act; find the public-interest lawyer; take it through the courts, up the ladder if you must; document everything, drawing on the company's own impact statements; harness the free press and the international spotlight; and in the interior, assert Indigenous rights. It does not promise an easy or permanent win — the oil economy is powerful and the wins are contested. But it is the method by which Guyanese citizens forced accountability on a supermajor and named a captured regulator for what it was — and it is the firmest ground a community can stand on. Judge your campaign by real outcomes — a breach declared, a regulator compelled, a right vindicated, a project delayed or exposed, a debate shifted — and hold to the knowledge that here, ordinary people with a good case and a good lawyer have made a giant answer to the law.

Real Outcomes: What Winning Looks Like

"Winning" in Guyana takes several forms, and it is worth naming them so you recognise one when it comes: a **permit condition enforced** or a **breach declared** by the courts; a **regulator compelled** by order of mandamus to do its duty; a **constitutional environmental right vindicated**; a **defective permit quashed**; **Indigenous consent enforced** in the interior; a **project delayed, conditioned, or exposed**; or a **landmark ruling** that changes the terms of the national debate and puts the industry and the regulator on notice — as the 2023 case did even before it was reversed. In an oil economy, accountability and exposure are themselves real victories, and a first-instance win that is later overturned still leaves a permanent public record and a shifted debate. Communities and citizens in Guyana have achieved these through the combination of a concrete legal ground, a determined lawyer, the courts, the free press, and international attention. Judge your campaign by these outcomes, and hold the honest balance the Whyte and Collins case teaches: the courts can deliver a genuine reckoning, and that reckoning matters even when the higher courts later narrow it.